



CHAPTER xli.

An Act to amend the Barrow-in-Furness Corporation Act 1901. A.D. 1917.
[2nd August 1917.]

WHEREAS the county borough of Barrow-in-Furness in the county palatine of Lancaster is a municipal borough under the government of the mayor aldermen and burgesses of the borough of Barrow-in-Furness (in this Act called "the Corporation"):

And whereas the Corporation are the owners of waterworks and supply water within the borough and neighbourhood under and subject to various Acts of Parliament and in particular are authorised by the Barrow-in-Furness Corporation Act 1901 (in this Act called "the Act of 1901") to construct certain waterworks therein described and to impound divert take appropriate and use the waters of the River Duddon as therein provided and such of the waters of Tarn Head Seathwaite Tarn Tarn Beck and all tributaries and streams flowing into the River Duddon and all other waters that can or may be intercepted or impounded by the said waterworks and all waters found in or upon any of the lands acquired by them for waterworks purposes subject to the limitation in the said Act contained and to the discharge of compensation water as in the said Act provided:

And whereas the said waterworks have been constructed and the supply of water by the said Act authorised is being obtained and used:

And whereas the supply of water from the waterworks of the Corporation is inadequate to meet the present growing demands of the inhabitants within the water limits of the Corporation and more especially those arising from or by reason of the extensive armament and shipbuilding works established

A.D. 1917. — and carried on within such limits and which works to meet the requirements of His Majesty's Government have been and are being largely extended:

And whereas it is necessary and expedient that the Corporation should be authorised to take appropriate and use an increased supply of water from the sources of supply authorised as aforesaid by the Act of 1901 subject however to increase in the minimum flow of water in the River Duddon as required by that Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the consent of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Barrow-in-Furness Corporation Water Act 1917 and this Act and the Act of 1901 may be cited together as the Barrow-in-Furness Corporation Water Acts 1901 and 1917.

Interpreta-
tion.

2. The several words and expressions to which by the Act of 1901 meanings are assigned shall in this Act have the same respective meanings unless there is something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Barrow-in-Furness;

“The borough” means the borough of Barrow-in-Furness;

“The borough fund” and “the borough rate” mean respectively the borough fund and borough rate of the borough;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or

paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

A.D. 1917.

“The Act of 1901” means the Barrow-in-Furness Corporation Act 1901.

AMENDMENT OF ACT OF 1901.

3. Subject to the provisions of paragraph (B) of subsection (10) of this section section 9 (Limitation of power to take waters and as to discharge of compensation water) of the Act of 1901 is hereby repealed and the following provisions shall have effect (that is to say):—

Repeal of section 9 of Act of 1901 and substitution of other provisions as to limitation of power to take waters and as to discharge of compensation water.

(1) Notwithstanding anything contained in the Act of 1901 the Corporation shall not divert take appropriate or use any water from the River Duddon except in accordance with the provisions of this section:

(2) If and so long as there is passing down the River Duddon immediately above the intake a quantity of water at the rate of more than three million five hundred thousand but less than six million five hundred thousand gallons per day the Corporation may divert take appropriate and use for the purposes of their water undertaking water at the rate per day of the excess beyond three million five hundred thousand gallons:

(3) If and so long as there is passing down the River Duddon immediately above the intake a quantity of water at the rate of six million five hundred thousand or more but less than fifteen million gallons per day the Corporation may divert take appropriate and use for the purposes of their water undertaking water at the rate per day of three million gallons and no more:

A.D. 1917.

(4) If and so long as there is passing down the River Duddon immediately above the intake a quantity of water at the rate of fifteen million gallons or more per day the Corporation may divert take appropriate and use for the purposes of their water undertaking water at the rate per day of the excess beyond twelve million gallons but not exceeding four million gallons :

(5) Unless the daily quantity of water flowing past the intake amounts to three million five hundred thousand gallons or more the Corporation shall discharge from the Seathwaite Tarn Reservoir into Tarn Beck and so by means of that beck into the River Duddon such a quantity of water as will be necessary to make the flow of the river immediately above the intake not less than the daily quantity of three million five hundred thousand gallons Provided that the rates at which water shall be discharged or permitted to flow from the Seathwaite Tarn Reservoir into Tarn Beck shall not be less than the following (namely) :—

(A) When there is passing down the River Duddon immediately above the intake a quantity of water at a rate of less than fifteen million gallons a day the rate of nine hundred thousand gallons a day in a uniform and continuous flow ; or

(B) At all other times the rate of four hundred thousand gallons a day in a uniform and continuous flow :

(6) In any day in which there is passing down the River Duddon immediately above the intake a quantity of water at the rate of less than fifteen million gallons and in which in pursuance of the provisions of this section the Corporation shall be entitled to and shall divert take appropriate and use more than two million gallons of water they shall in such day discharge or permit to flow from the Seathwaite Tarn Reservoir into Tarn Beck such a quantity of water (in addition to the quantity to be discharged or permitted to flow under the proviso to subsection (5)

A.D. 1917.

of this section) as shall be equal to that by which the quantity of water so diverted taken appropriated and used shall exceed two million gallons:

(7)—(A) The Corporation shall alter and adapt the existing gauges and appliances and so far as necessary provide further appliances and thereafter maintain the same so that there shall be—

(i) In the River Duddon immediately below the intake a suitable gauge and appliances including an automatic recorder for measuring the quantity of water flowing down that river;

(ii) In the intake a suitable gauge and appliances for automatically controlling the quantity of water passing through such gauge;

(iii) A recording meter for measuring the quantity of water passing into the conduit or line of pipes of the Corporation;

(iv) Immediately below the dam of the Sea-thwaite Tarn Reservoir a suitable gauge and appliances including an automatic recorder for measuring the quantity of water flowing from the reservoir:

(B) The quantities of water measured by the gauge in the River Duddon and passing through the gauge in the intake shall for the purposes of this section be the quantity of water passing down the River Duddon immediately above the intake:

(c) The said gauges and appliances shall be in accordance with plans approved by the Board of Agriculture and Fisheries and shall be open to the inspection and examination of all persons for the time being interested in the water so to flow or pass through or over the said gauges and of any officer of the Board of Agriculture and Fisheries or of the board of conservators or of the rural district councils of Ulverston and Bootle (in this section called "the councils") or either of them and such persons so interested the board of conservators the councils and the Hodbarrow Mining Company Limited or (on the determination of that company's interest in the

A.D. 1917.
—

Hodbarrow Mine) the lord for the time being of the manor of Millom shall on application be supplied with certified copies of the records of any month on payment of one shilling :

- (8) If at any time any such gauge or recorder shall be out of repair or in an unfit condition for the purpose for which it is intended the Corporation shall forthwith put the same in fit repair and condition and if they fail to do so within one month after notice in writing given to them in that behalf by or on behalf of the Board of Agriculture and Fisheries the board of conservators the councils or the Hodbarrow Mining Company Limited or (on the determination of that company's interest in the Hodbarrow Mine) the lord for the time being of the manor of Millom then the board council company or lord of the manor who shall have given the notice may cause the said gauge or recorder to be put in fit repair and condition and may recover the reasonable cost of so doing from the Corporation :
- (9) If the Corporation shall divert take appropriate or use any water from the River Duddon except in accordance with the provisions of this section or shall omit or fail to discharge or cause or permit to flow the quantity of water required by this section they shall for every day on which such act omission or failure shall occur pay a penalty not exceeding five pounds to each person along the River Duddon and Tarn Beck who may have sustained loss by any such act omission or failure and to the board of conservators such penalty to be recoverable by such board as if the same were a penalty imposed by the Salmon and Freshwater Fisheries Acts 1861 to 1892 :
- (10)—(A) Without prejudice to any penalties to which they may be subject under this section if by reason of the storage capacity of the Seathwaite Tarn Reservoir proving to be insufficient for the purpose the Corporation shall on eight several days in any one year fail or neglect to discharge or permit to flow from the said reservoir into Tarn Beck the quantities of water respectively which they are required by the

provisions of this section to discharge or permit to flow they shall in the next available session of Parliament take all necessary steps to obtain statutory powers to enable them to construct an additional reservoir of a sufficient capacity to give adequate compensation water for all water taken by the Corporation : A.D. 1917.

- (B) If the Corporation shall fail either to take such steps or to commence to exercise the powers when obtained within a period of two years the foregoing provisions of this section shall thereupon cease to apply and the Corporation shall have the powers and shall be subject to the restrictions and obligations conferred and imposed by section 9 of the Act of 1901 and that section shall be revived and apply accordingly :

Provided that the Corporation shall be entitled to appeal to the Local Government Board and that that Board shall have power to suspend the operation of this provision for such period and upon and subject to such terms and conditions as they may think fit :

- (11) The provisions of this section shall be accepted and taken as full compensation for all water by the Act of 1901 and this Act authorised to be diverted taken appropriated and used by the Corporation for the purposes of their water undertaking.

FINANCIAL PROVISIONS.

4.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purpose mentioned in the first column of the following table the sum mentioned in the second column thereof and they shall pay off all moneys so borrowed within the period mentioned in the third column thereof (namely):— Power to borrow.

1.	2.	3.
Purpose.	Amount.	Period.
For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	Five years from the passing of this Act.

A.D. 1917.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the borough fund and borough rate and the estates and property of the Corporation or any of them.

Restriction
on borrow-
ing money.

5. Notwithstanding anything in this Act the Corporation shall not under the powers of this Act borrow any money (other than money required to pay the costs charges and expenses of this Act as hereinafter defined) during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Application
of certain
provisions of
Act of 1901.

6. The following provisions of the Act of 1901 shall extend and apply with the necessary modifications in regard to moneys to be borrowed and mortgages granted under the powers of this Act (that is to say):—

Section 53 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);

Section 54 (Provisions as to mortgages);

Section 56 (Mode of payment off of money borrowed);

Section 57 (Sinking fund);

Section 58 (Protection of lender from inquiry);

Section 59 (Corporation not to regard trusts);

Section 60 (Appointment of receiver); and

Section 62 (Return respecting sinking fund to Local Government Board).

Power to
re-borrow.

7.—(1) The Corporation shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section. A.D. 1917.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) By instalments or annual payments; or
- (B) By means of a sinking fund; or
- (C) Out of moneys derived from the sale of land; or
- (D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 61 (Power to re-borrow) of the Act of 1901 and so much of section 69 (Incorporation of certain sections of Act of 1901) of the Barrow-in-Furness Corporation Act 1904 as extends the provisions of the said section 61 to moneys borrowed under the last-mentioned Act are hereby repealed but without prejudice to anything done or suffered to be done thereunder respectively.

MISCELLANEOUS.

8. All powers given to the Corporation by this Act shall be deemed to be in addition to and not in derogation of any other powers conferred on them by any general or local Act and such other powers may be exercised in the same manner as if this Act had not been passed. Powers of Act cumulative.

9. The provisions of the Municipal Corporations Act 1882 relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under that Act shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act. Audit of accounts.

A.D. 1917.

Inquiries by
Local
Government
Board.

10.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary for giving effect to any of the provisions of this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Costs of Act.

11. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of money to be borrowed under this Act.

Printed by EYRE and SPOTTISWOODE, LIMITED,
FOR

Sir FREDERICK ATTERBURY, K.C.B., the King's Printer of Acts of Parliament.

To be purchased through any Bookseller or directly from
H.M. STATIONERY OFFICE at the following addresses:
IMPERIAL HOUSE, KINGSWAY, LONDON, W.C.2, and 28, ABINGDON STREET, LONDON, S.W.1;
37, PETER STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;
23, FORTH STREET, EDINBURGH;
or from E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America and other Foreign Countries of
T. FISHER UNWIN, LTD., LONDON, W.C.2.